

Thus, even if there were some issue with defense counsel failing to contact Plaintiff regarding the Defendant's demurrer – the default was still void and cannot be enforced.

Conclusion

Plaintiff's motion to sustain default is **denied**.

14. 9:00 AM CASE NUMBER: C25-02823
CASE NAME: TAMARA ZABLOCKI VS. JEARALDIN ALTOBAR
***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: ALTOBAR, JEARALDIN

TENTATIVE RULING:

Introduction

Defendants Banning Moragaidence Opco, LLC, Individually and Doing Business as Moraga Post Acute; Providence Group North, LLC; Providence Group Northern California, LLC; Providence Administrative Consulting Services, Inc.; PACS Holdings, LLC; PACS Group, Inc.; Providence Group, Inc.; 348 Rheem Boulevard, LLC; Jearaldin Altobar's (Defendants) Motion To Compel Arbitration and Stay of Action. The Motion relates to Plaintiffs TAMARA ZABLOCKI and JOSEPH JOHN ZABLOCKI, Individually, as Successor-in-Interest of JOSEPH PAUL ZABLOCKI's Complaint for (1) Elder Abuse/Neglect (Pursuant to Welfare and Institutions Code § 15600, et seq.); (2) Negligence/Willful Misconduct; (3) Premises Liability; (4) Violation of Resident's Rights (Pursuant to Health & Safety Code § 1430(b)); (5) Intentional Infliction of Emotional Distress; and (6) Wrongful Death filed on September 30, 2025.

Plaintiff argues that Mr. Zablocki's survival claims cannot be compelled because Defendants do not meet their burden to prove that Tamara had the authority to sign the Arbitration Agreement on Mr. Zablocki's behalf, arbitration of the wrongful death claim cannot be compelled because the heirs did not agree to arbitrate, and if the Court determines that only the survival claims or only the wrongful death claim must be arbitrated, then it should exercise its discretion under CCP section 1281.2(d)(1) to combine the wrongful death Court action and arbitration in one Court proceeding due to the substantial risk of conflicting rulings by the arbitrator and the Court on common issues of law or fact, or in the alternative stay arbitration of the survival claims and proceed on the wrongful death claims in court.

For the reasons articulated below, **Defendants' Motion to Compel Arbitration is granted in part and denied in part**. The Court **denies arbitration of the first cause of action for elder abuse, fourth cause of action for resident's rights, and the sixth cause of action for wrongful death**. The Court **compels arbitration of the remaining causes of action to arbitration pursuant to the Arbitration Agreement**. The Court orders this matter to be **stayed in full, pending conclusion of the arbitration**.

Procedural Background

Plaintiffs filed their Complaint on September 30, 2025. Defendants filed their Motion to Compel Arbitration on January 07, 2026. At the Case Management Conference on January 26, 2026, Judge Benjamin T Reyes, II in Department 16 notified all Parties in attendance that the case was reassigned to Judge Julia Campins in Department 10 and that there was a pending Motion to Compel Arbitration

on calendar.

Factual Background

The Complaint alleges as follows.

On September 27, 2024, Mr. Zablocki was admitted to Moraga Post Acute (the “Facility”), a skilled nursing facility in Moraga, CA. (Complaint ¶¶ 3, 43.) The Facility is jointly owned, operated, managed, administered, supervised, controlled, and directed by Defendants Moragaidence Opco, LLC, Jearaldin Altobar, Providence Group North, LLC, Providence Group Northern California, LLC, Providence Administrative Consulting Services, Inc., PACS Holdings, LLC, PACS Group, Inc., and Providence Group, Inc. (collectively, the “Defendants”). (Complaint ¶¶ 3-5.)

While at the Facility, Mr. Zablocki was unable to communicate his needs and relied on Defendants to provide him with adequate nutrition and hydration, monitor and report any sustained low blood pressure, and assess and maintain the cleanliness of his surgical wound. (Complaint ¶¶ 40, 59- 60, 66- 67, 73.) At all times, Facility staff knew that Mr. Zablocki was at high risk for developing malnutrition, inadequate blood flow, and infection. (Complaint ¶¶ 40-41, 66, 73-74, 88, 100, 114.)

Despite this knowledge, Facility staff provided Mr. Zablocki with only about 30% to 35% of his required nutrition and hydration. (Complaint ¶¶ 61-62.) Staff also failed to consistently monitor Mr. Zablocki’s blood pressure or contact his doctor about his consistently low blood pressure results. (Complaint ¶ 66.) And instead of protecting Mr. Zablocki’s surgical wound from infection, the Facility risked infection by housing him temporarily in a public area frequented by visitors and failed to assess and clean his surgical wound until he required hospitalization. (Complaint ¶¶ 63-65, 67, 69-72.) Even though Mr. Zablocki was losing weight, exhibiting inadequate blood flow, and suffering from a progressively infected and deteriorating surgical wound during his month of residency at the Facility, Facility staff never reported Mr. Zablocki’s declining health to his doctors despite explicit instructions to do so. (Complaint ¶¶ 60-61, 66, 69-70.)

On October 31, 2024, Mr. Zablocki was transferred to the hospital for his infected surgical wound where he was diagnosed with an MRSA infection. (Complaint ¶ 71.) He remained hospitalized for about a month but never recovered, and he died on December 9, 2024. (Complaint ¶ 72.)

Legal Standard for Motions to Compel Arbitration

A motion to compel arbitration “is in essence a suit in equity to compel specific performance of a contract.” (*Cal. Teachers Ass’n v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399, citation omitted.) “A party who files a motion to compel arbitration ‘bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.” (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580 quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) Whether or not the arbitration clause is governed by federal law, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413 (“Rosenthal”).)

Analysis

Defendants' Initial Burden

Here, Defendant provides a copy of the Arbitration Agreement. (Truong Decl. ¶ 4, Ex. C.) Plaintiffs do not dispute the existence of the Arbitration Agreement. As such, Defendants have met their initial burden to establish the existence of an Arbitration Agreement. Accordingly, the burden now shifts to Plaintiffs to present facts showing why it should not be enforced.

Plaintiff's Tamara Zablocki's Authority to Sign on Behalf of Decedent Joseph Paul Zablocki

"When a defendant contends an agreement to arbitrate is binding because it was signed by an agent of the plaintiff, the defendant bears the burden of proving the signatory was the plaintiff's actual or ostensible agent." (*Kinder v. Capistrano Beach Care Ctr., LLC* (2023) 91 Cal. App. 5th 804, 812.) "Actual agency arises when the principal's conduct causes the agent reasonably to believe that the principal consents to the agent's act on behalf of the principal." (*Rogers v. Roseville SH, LLC* (2022) 75 Cal. App. 5th 1065, 1074.) "Ostensible agency," on the other hand "arises when the principal's conduct causes the third party reasonably to believe that the agent has the authority to act on the principal's behalf." *Id.* In both cases, "conduct by the principal is essential to create the agency." (*Flores v. Evergreen at San Diego, LLC* (2007) 148 Cal. App. 4th 581, 587-88.) Thus, "a defendant cannot meet its burden to prove the signatory acted as the agent of a plaintiff by relying on representations of the purported agent alone." (*Kinder*, 91 Cal. App. 5th at 812.)

In *Kinder*, the court held that the defendants did not meet their burden to show that the resident's adult children were the resident's agents where the defendants "presented no evidence that [the resident] did anything to lead [her children] to believe they had the actual authority to enter into arbitration agreements on her behalf" or "that [the resident] did anything to lead defendants to believe that [her children] had ostensible authority to do so." (*Id.* at 813.)

Plaintiffs argue that Defendants offer no evidence that Joseph Paul Zablocki did anything to cause Tamara or Defendants to believe that Tamara had authority to sign. (Opposition at p. 5: 20-27.)

In reply, Defendants submitted a Durable Power of Attorney signed by Joseph Paul Zablocki appointing Tamara Zablocki as his agent for a broad scope of power over all legal matters and exercise all powers with respect to legal actions that I could if present and under no disability or incapacity. (Truong Decl., Ex. F, at p. 7.) This express scope expressly includes but is not limited to submitting claims to arbitration. (*Id.*)

Defendants successfully showed that Plaintiff Tamara Zablocki had authority to sign the Arbitration Agreement as an agent of decedent Joseph Paul Zablocki.

Code of Civil Procedure Section 1296(a) and Ruiz Do Not Apply

"As a general rule, plaintiffs cannot be compelled to arbitrate their disputes if they have not previously agreed to arbitration." (*Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 364, 370.) If a patient agreed to arbitrate medical malpractice disputes in compliance with the arbitration provision of the Medical Injury Compensation Reform Act (MICRA) (codified as Code Civ. Proc., § 1295), the patient-provider agreement may bind the patient's heirs in a wrongful death action, even if

the heirs themselves never agreed to arbitration. (*Id*; citing *Ruiz v. Podolsky* (2010) 50 Cal.4th 838, 849-50.)

In the context of a skilled nursing facility, the operative question is whether such duties are owed by virtue of being a medical services provider or by virtue of being the custodian of a dependent adult. Claims premised on the manner in which skilled nursing or other long-term care facilities protect the basic welfare and safety of residents fall outside the scope of section 1295(a), and thus outside the scope of *Ruiz*. (*Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 364, 381.)

Certainly, in some cases, a claim of injury from falls and infection might be based on negligence in prescribing or executing a plan to address a resident's medical needs. But in other cases, the claim of injury might be based on a failure to adequately supervise and render assistance to residents as they undertake daily activities, or the failure to ascertain whether residents need medical treatment despite easily observable physical manifestations of possible illness. While the first sort of claim may sound in professional negligence, the second sort of claim generally does not. (*Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 364, 381-382.) Courts have squarely rejected the contention that whether an action is based on the professional negligence of a health care provider should "turn on the custodian's licensing status." (*Delaney v. Baker* (1999) 20 Cal.4th 23, 35.)

The Complaint alleges that Defendants neglected Mr. Zablocki by failing to meet his nutrition and hydration need, monitoring his blood pressure consistently, assessing and cleaning his surgical wound, compounded by their failure to report Mr. Zablocki's rapid weight loss, consistently low blood pressures, and steadily worsening wound condition to his doctors as instructed. (Complaint ¶¶ 61-67, 69-72.)

Defendants contend that Plaintiffs allegations are grounded in professional negligence and not custodial neglect. (Reply at p. 5: 6-8.) Defendants draw light to the fact that the Complaint had allegations against licensed healthcare professionals, which included but is not limited to inadequate staffing, supervision, withholding of dietary care and support, and withholding of wound care. (Reply at p. 5: 8-26.) All the allegations highlighted by the papers cut towards that the position that negligence claim is grounded in the basic welfare and safety of residents, which falls outside the scope of section 1295(a), and outside the scope of *Ruiz*.

Elder Abuse and Resident's Rights Causes of Action Cannot Be Compelled

Anyone may waive the advantage of a law intended solely for their benefit. But a law established for a public reason cannot be contravened by a private agreement. (Civ. Code, § 3513.)

Legislature's expression of public policy through their legislation makes clear that under no circumstances may a patient or resident waive his or her right to sue for violations of rights under the Patients Bill of Rights, or other federal and state laws and regulations, which would include the existing Elder Abuse and Dependent Adult Civil Protection Act. (*Fitzhugh v. Granada Healthcare & Rehabilitation Center, LLC* (2007) 150 Cal.App.4th 469, 476.) The First District Court of appeal reasoned that courts should rule, consistent with public policy expressed in the statutes enacted by the Legislature to protect a particularly vulnerable portion of the population from gross mistreatment in the form of abuse and custodial neglect, and to ensure appropriate relief for such mistreatment.

(Id.)

Thus, Plaintiff's first cause of action for elder abuse and fourth cause of action for resident's rights cannot be compelled to arbitration.

Wrongful Death Claims Cannot Be Compelled

Since *Ruiz* does not apply here, *Fitzhugh* does.

In *Fitzhugh*, the court concluded that where one wrongful death heir signs only in his capacity as "legal representative/agent" of the resident, and the others do not sign at all, "there is no basis to infer that they waived their personal right to jury trial on the wrongful death claim." (*Fitzhugh v. Granada Healthcare & Rehab. Ctr., LLC* (2007) 150 Cal. App. 4th at 474.) *Fitzhugh* is on point because Joseph did not sign the Agreement, and Tamara only signed as the "Authorized Agent" of Mr. Zablocki. (Truong Decl. Ex. C at p. 4.)

Thus, Plaintiff's sixth cause of action for wrongful death cannot be compelled to arbitration.

Stay

Under the FAA, courts must stay an action where "the issue involved in such suit or proceeding is referable to arbitration under an arbitration "agreement." (9 U.S.C § 3.) It is not clear, however, that this provision applies to proceedings in state court. (*Volt Information Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University* (1989) 489 U.S. 468, 477, fn. 6 [noting the United States Supreme Court has not held this provision applies to state court proceedings]; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 410 [holding "section 4 of the USAA does not apply in California court" but not deciding whether section 3 applies].)

Independent of the CAA and FAA, courts have inherent authority to stay proceedings. (*Landis v. North American Co.* (1936) 299 U.S. 248, 254 ["the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants"]; *Nederlandse Erts-Tankersmaatschappij, N.V. v. Isbrandtsen Co.* (2nd Cir. 1964) 339 F.2d 440, 441 [no authority under 9 U.S.C. § 3 to stay action, but stay permitted under district court's inherent power to control its docket]; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 ["Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency"].) Even assuming the CAA and FAA neither require nor authorize the court to stay the current claims, the Court would exercise its inherent authority to issue a stay.

The FAA applies here as it is expressly stated in the Agreement that the FAA applies and that the California Code of Civil Procedure does not govern. (Truong Decl. Ex. C at pp. 1-2.)

The arbitration agreements in this case are governed by the FAA. CCP § 1281.2 does not apply when the FAA's rules govern. (*Rodriguez v. Am. Techs., Inc.* (2006) 136 Cal.App.4th 1110, 1115-16.)

Under the Federal Arbitration Act, 9 U.S.C. section 1 et seq. (FAA), the court's only option in these circumstances is to stay the court proceeding and compel the arbitration." (*Rodriguez, supra*, 136 Cal.App.4th at 114-115.)

Conclusion

For the reasons analyzed above, **Defendants' Motion to Compel Arbitration is granted in part and denied in part.** The Court **denies arbitration of the first cause of action for elder abuse, fourth cause of action for resident's rights, and the sixth cause of action for wrongful death.** The Court **compels arbitration of the remaining causes of action to arbitration pursuant to the Arbitration Agreement.** The Court orders this matter to be **stayed in full, pending conclusion of the arbitration.**

15. 9:00 AM CASE NUMBER: C25-02961
CASE NAME: SANDRA PONDS VS. BRUCE ALLS
*HEARING ON MOTION IN RE: TO VACATE SISTER STATE JUDGMENT
FILED BY: ALLS, BRUCE
TENTATIVE RULING:

Defendant Bruce Alls's motion to vacate the sister state judgment is **granted.**

Sanda Ponds obtained a judgment against Bruce Alls for \$53,532.57 in Georgia on July 19, 2023. Ponds assigned her judgment to G.R. Isidro on June 4, 2025. Isidro filed an application for entry of judgment on a sister state judgment on October 10, 2025. This Court entered judgment against Alls on October 10, 2025. The notice of entry of judgment was served on Alls by mail on October 28, 2025.

Alls filed this motion to vacate the judgment on November 13, 2025. Alls's motion is based upon Code of Civil Procedure section 1710.40 and the fact that Alls had notified the Georgia court of his current address, but the court mailed hearing notices to an incorrect address.

The records provided by Alls show that he filed a response in *Ponds v. Alls* (in Georgia) on January 3, 2023. In this response he listed his address as being in Conyers, GA. The judgement states that Ponds appeared for the bench trial on July 18, 2023, and Alls did not appear. The judgment was sent to Alls at an address in Loganville, GA.

Isidro provided additional documents from the Georgia case that a summons was issued to Alls at the Loganville property and Alls's was served by delivering a copy to Alls's sister at the Loganville property on December 16, 2022. (Opposition ex. A and B.) Isidro provided a declaration stating that he has personal knowledge of the documents filed in the Georgia case. Although it is not clear how Isidro has personal knowledge of these documents, these documents appeared to have been filed in the Georgia case and there is no claim that they are false. Thus, the Court may take judicial notice of the summons and proof of service filed in the case. The Court also takes judicial notice of Alls's response and the judgment filed in the Georgia case.

Alls argues that the Georgia judgment was entered without proper notice or jurisdiction. He then argues that the Georgia court mailed hearing notices to an incorrect address, despite having the correct address on file.

A motion to vacate a sister state judgment must be filed within 30 days of notice of entry of the